

(3) The Board may order that its costs of a proceeding be paid by a party or the party's paid representative. 2006, c. 17, s. 204 (3); 2006, c. 17, s. 261 (4).

Same

(4) The amount of an order for costs shall be determined in accordance with the Rules. 2006, c. 17, s. 204 (4).

Same

(5) Subsections (2) to (4) apply despite section 17.1 of the *Statutory Powers Procedure Act*. 2006, c. 17, s. 204 (5).

▼ Section Amendments with date in force (d/m/y)

Order payment

205 (1) The Board may include in an order one of the following provisions:

1. "The landlord or the tenant shall pay to the other any sum of money that is owed as a result of this order."
2. "The non-profit housing co-operative or the member shall pay to the other any sum of money that is owed as a result of this order." 2013, c. 3, s. 47.

Payment of order by instalments

(2) If the Board makes an order for a rent increase above the guideline and the order is made three months or more after the first effective date of a rent increase in the order, the Board may provide in the order that if a tenant owes any sum of money to the landlord as a result of the order, the tenant may pay the landlord the amount owing in monthly instalments. 2006, c. 17, s. 205 (2).

Same

(3) If an order made under subsection (2) permits a tenant to pay the amount owing by instalments, the tenant may do so even if the tenancy is terminated. 2006, c. 17, s. 205 (3).

Same

(4) An order providing for monthly instalments shall not provide for more than 12 monthly instalments. 2006, c. 17, s. 205 (4).

▼ Section Amendments with date in force (d/m/y)

Agreement to settle matter

206 (1) Where a landlord has made an application under section 69 for an order terminating a tenancy and evicting the tenant based on a notice of termination under section 59 or an application for payment of arrears of rent, or both, the Board may make an order including terms of payment without holding a hearing if,

(a) the parties have reached a written agreement resolving the subject-matter of the application;

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 206 (1) of the Act is amended by adding the following clause: (See: 2023, c. 10, Sched. 7, s. 8)

(a.1) the agreement is in the form approved by the Board;

(b) the agreement has been signed by all parties; and

(c) the agreement is filed with the Board before the hearing has commenced.
2006, c. 17, s. 206 (1).

Contents of order

(2) In an order under subsection (1), the Board may, based on the agreement reached by the parties, order,

(a) payment of any arrears and NSF cheque charges or related administration charges that are owing;

(b) payment of the fee paid by the landlord for the application to the Board; and

(c) payment of any rent that becomes due during the period in which the arrears are required to be paid. 2006, c. 17, s. 206 (2).

Restriction

(3) In an order under subsection (1) issued on or after the day subsection 31 (1) of

Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force, the Board shall not order that the tenancy be terminated. 2020, c. 16, Sched. 4, s. 31 (1).

Application under s. 78

(3.1) In an order under subsection (1) issued on or after the day subsection 31 (1) of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force, the Board may include a provision allowing a landlord to make an application under section 78 if the tenant fails to comply with one or more of the terms of the order. 2020, c. 16, Sched. 4, s. 31 (1).

Request by landlord

(4) A landlord may file a request to reopen the application if the tenant fails to comply with the terms of the order and shall, in the request, indicate which terms were not complied with and the manner in which the tenant failed to meet the terms of the order. 2006, c. 17, s. 206 (4).

Request by landlord or tenant

(5) A landlord or tenant may file a request to reopen the application within 30 days after the order was made on the basis that the other party coerced them or deliberately made false or misleading representations which had a material effect on the agreement and the order issued under subsection (1). 2006, c. 17, s. 206 (5).

Request under subs. (4) or (5)

(5.1) A landlord may file a request to reopen the application under subsection (4) or (5) even if the order includes a provision described in subsection (3.1). 2020, c. 16, Sched. 4, s. 31 (2).

Timing

(6) A request under subsection (4) shall not be made later than 30 days after a failure of the tenant to meet a term of the order. 2006, c. 17, s. 206 (6).

Copy of request, notice of hearing

(7) The party filing the request must give the other parties to the application a copy of

the request to reopen the application and the notice of hearing within the time set out in the Rules. 2006, c. 17, s. 206 (7).

Condition

(8) If a request to reopen is made under subsection (4), the Board shall not proceed to hear the merits of the application unless the Board is satisfied that the tenant failed to comply with a term of the order. 2006, c. 17, s. 206 (8).

Same

(9) If a request to reopen is made under subsection (5), the Board shall not proceed to hear the merits of the application unless the Board is satisfied that there was coercion or deliberate false or misleading representations which had a material effect on the agreement and the order issued under subsection (1). 2006, c. 17, s. 206 (9).

Application to non-profit housing co-operatives

(10) Where a non-profit housing co-operative has made an application under section 94.7 for an order terminating the occupancy of a member unit and evicting the member based on a notice of termination under paragraph 3 of subsection 94.2 (1) or has made that application and has also applied at the same time for payment of arrears of regular monthly housing charges, the Board may make an order including terms of payment without holding a hearing if,

- (a) the parties have reached a written agreement resolving the subject matter of the application;
 - (b) the agreement has been signed by all parties; and
 - (c) the agreement is filed with the Board before the hearing has commenced.
- 2013, c. 3, s. 48.

Same

(11) Subsections (2) to (9) apply with necessary modifications to an application under subsection (10) and for that purpose,

- (a) "tenant" shall be read as "member";
- (b) "landlord" shall be read as "non-profit housing co-operative";
- (c) "tenancy" shall be read as "occupancy" and "a tenancy" shall be read as "an

occupancy”;

(d) “rent” shall be read as “the regular monthly housing charges”; and

(e) “section 78” shall be read as “section 94.11”. 2013, c. 3, s. 48.

▼ Section Amendments with date in force (d/m/y)

Hearing officers

206.1 (1) The Board may designate one or more employees in the Board as hearing officers for the purposes of this section to exercise the powers and duties of the Board as its delegate. 2011, c. 6, Sched. 3, s. 2; 2013, c. 3, s. 49.

Powers of hearing officer

(2) Subject to any restrictions in the regulations, a hearing officer may do the following with respect to an application described in subsection (3):

1. Hold a hearing.
2. Make an order that the Board could make, including an order made other than in connection with a hearing. 2011, c. 6, Sched. 3, s. 2.

Applications

(3) The applications with respect to which subsection (2) applies are the following:

1. An application for which the respondent does not appear at the time scheduled for the hearing.
2. An application specified in the Rules. 2011, c. 6, Sched. 3, s. 2.

Order of Board

(4) An order made by a hearing officer under paragraph 2 of subsection (2) is an order of the Board for the purposes of this Act. 2011, c. 6, Sched. 3, s. 2.

▼ Section Amendments with date in force (d/m/y)

Monetary jurisdiction; deduction of rent; interest

Monetary jurisdiction of Board

207 (1) The Board may, where it otherwise has the jurisdiction, order the payment to any given person of an amount of money up to the greater of \$10,000 and the monetary jurisdiction of the Small Claims Court. 2006, c. 17, s. 207 (1).

Same

(2) A person entitled to apply under this Act but whose claim exceeds the Board's monetary jurisdiction may commence a proceeding in any court of competent jurisdiction for an order requiring the payment of that sum and, if such a proceeding is commenced, the court may exercise any powers that the Board could have exercised if the proceeding had been before the Board and within its monetary jurisdiction. 2006, c. 17, s. 207 (2).

Same

(3) If a party makes a claim in an application for payment of a sum equal to or less than the Board's monetary jurisdiction, all rights of the party in excess of the Board's monetary jurisdiction are extinguished once the Board issues its order. 2006, c. 17, s. 207 (3).

Minimum amount

(4) The Board shall not make an order for the payment of an amount of money if the amount is less than the prescribed amount. 2006, c. 17, s. 207 (4).

Order may provide deduction from rent or regular monthly housing charges

(5) If a landlord or non-profit housing co-operative is ordered to pay a sum of money to a person who is a tenant of the landlord or a member of the co-operative at the time of the order, the order may provide that if the landlord or co-operative fails to pay the amount owing, the tenant or member may recover that amount plus interest by deducting a specified sum from the tenant's rent or the member's regular monthly housing charges paid to the landlord or co-operative for a specified number of rental periods or, in the case of a member, months. 2013, c. 3, s. 50 (1).

Same

(6) Nothing in subsection (5) limits the right of the tenant or member to collect at any time the full amount owing or any balance outstanding under the order. 2013, c. 3, s. 50 (1).

Post-judgment interest

(7) The Board may set a date on which payment of money ordered by the Board must be made and interest shall accrue on money owing only after that date at the post-judgment interest rate under section 127 of the *Courts of Justice Act*. 2006, c. 17, s. 207 (7).

Definition — “member”

(8) In subsections (5) and (6),

“member” means a member as defined in the *Co-operative Corporations Act*. 2013, c. 3, s. 50 (2).

▼ Section Amendments with date in force (d/m/y)

Notice of decision

208 (1) The Board shall send each party who participated in the proceeding, or the person who represented the party, a copy of its order, including the reasons if any have been given, in accordance with section 191. 2006, c. 17, s. 208 (1); 2006, c. 17, s. 261 (5).

Same

(2) Section 18 of the *Statutory Powers Procedure Act* does not apply to proceedings under this Act. 2006, c. 17, s. 208 (2).

▼ Section Amendments with date in force (d/m/y)

Order final, binding

209 (1) Except where this Act provides otherwise, and subject to section 21.2 of the *Statutory Powers Procedure Act*, an order of the Board is final and binding. 2006, c. 17, s. 209 (1).

Power to review

(2) Without limiting the generality of section 21.2 of the *Statutory Powers Procedure Act*, the Board's power to review a decision or order under that section may be exercised if a party to a proceeding was not reasonably able to participate in the proceeding. 2006, c. 17, s. 209 (2).

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 209 (2) of the Act is repealed and the following substituted: (See: 2025, c. 14, Sched. 12, s. 11)

Power to review

(2) The power of the Board to review all or part of its decision or order under section 21.2 of the *Statutory Powers Procedure Act* is subject to any prescribed limitations or conditions. 2025, c. 14, Sched. 12, s. 11.

Timing of review

(3) A request to review all or part of a decision or order of the Board shall be submitted within 15 days of the issuance of the decision or order, unless the Board considers it just and appropriate in the circumstances to extend the time to request the review. 2025, c. 14, Sched. 12, s. 11.

Transition

(4) Subsection (3) applies only to a decision or order that is made on or after the day section 11 of Schedule 12 to the *Fighting Delays, Building Faster Act, 2025* comes into force. 2025, c. 14, Sched. 12, s. 11.

▼ Section Amendments with date in force (d/m/y)

Appeal rights

210 (1) Any person affected by an order of the Board may appeal the order to the Divisional Court within 30 days after being given the order, but only on a question of law. 2006, c. 17, s. 210 (1).

Board to receive notice

(2) A person appealing an order under this section shall give to the Board any documents relating to the appeal. 2006, c. 17, s. 210 (2).

Board may be heard by counsel

(3) The Board is entitled to be heard by counsel or otherwise upon the argument on any issue in an appeal. 2006, c. 17, s. 210 (3).

Powers of Court

(4) If an appeal is brought under this section, the Divisional Court shall hear and determine the appeal and may,

(a) affirm, rescind, amend or replace the decision or order; or

(b) remit the matter to the Board with the opinion of the Divisional Court. 2006, c. 17, s. 210 (4).

Same

(5) The Divisional Court may also make any other order in relation to the matter that it considers proper and may make any order with respect to costs that it considers proper. 2006, c. 17, s. 210 (5).

Board may appeal Court decision

211 The Board is entitled to appeal a decision of the Divisional Court on an appeal of a Board order as if the Board were a party to the appeal. 2006, c. 17, s. 211.

Substantial compliance sufficient

212 (1) Substantial compliance with this Act respecting the contents of forms, notices or documents is sufficient. 2006, c. 17, s. 212.

When error still constitutes substantial compliance

(2) For greater certainty, an error in the contents of a form, notice or document still constitutes substantial compliance with this Act, as long as the error does not significantly prejudice a party's ability to participate in a proceeding under this Act. 2024, c. 28, Sched. 24, s. 1.

▼ Section Amendments with date in force (d/m/y)

Electronic documents

213 Any document referred to in this Act and specified in the regulations or in the Rules may be created, signed, filed, provided, issued, sent, received, stored, transferred, retained or otherwise dealt with electronically if it is done in accordance with the regulations or the Rules. 2006, c. 17, s. 213.

Contingency fees, limitation

214 (1) No agent who represents a landlord, tenant, non-profit housing co-operative or member of a non-profit housing co-operative in a proceeding under this Act or who assists a landlord, tenant, non-profit housing co-operative or member of a non-profit housing co-operative in a matter arising under this Act shall charge or take a fee based on a proportion of any amount which has been or may be recovered, gained or saved, in whole or in part, through the efforts of the agent, where the proportion exceeds the prescribed amount. 2013, c. 3, s. 51.

Same

(2) An agreement that provides for a fee prohibited by subsection (1) is void. 2006, c. 17, s. 214 (2).

▼ Section Amendments with date in force (d/m/y)

PART XIII

MUNICIPAL VITAL SERVICES BY-LAWS

Definition

215 In this Part,

“vital services by-law” means a by-law passed under section 216. 2006, c. 17, s. 215.

By-laws respecting vital services

216 (1) The council of a local municipality may pass by-laws,

- (a) requiring every landlord to provide adequate and suitable vital services to each of the landlord’s rental units;
- (b) prohibiting a supplier from ceasing to provide the vital service until a notice